

IN THE _____ COURT OF _____ COUNTY, WEST VIRGINIA
IN THE MATTER OF:

Civil Action No.

_____-_____-____

Minor(s) Under the Age of 18 Years

PETITION FOR APPOINTMENT OF GUARDIAN

I, _____, pursuant to West Virginia Code § 44-10-3,
hereby request that the Court appoint a guardian for the following minor(s):

<i>Name</i>	<i>Age</i>	<i>Date of Birth</i>
_____	_____	_____
_____	_____	_____
_____	_____	_____

1. Each minor named above is: **(check one)**

☐ a current resident of this county and state.

☐ a nonresident of the state but has an estate (real property or other assets) in this county.

2. This guardianship petition is requesting that a guardian be appointed over the **(check one or both)** ☐ person of the minor(s) and/or ☐ estate of the minor(s).

3. The parents of the minor(s) are:

	<i>Name</i>	<i>Address</i>	<i>Deceased?</i>
Father:	_____	_____ _____	☐
Mother:	_____	_____ _____	☐

4. The proposed guardian(s) of the minor(s) is/are: *(Check and complete one or two as appropriate, depending upon whether one guardian is sought over the person and/or the estate, or different guardians are sought over the person and the estate.)*

- ☐ The above-named father over the ☐ **person** / ☐ **estate** of the minor(s).
- ☐ The above-named mother over the ☐ **person** / ☐ **estate** of the minor(s).
- ☐ Another individual named below over the ☐ **person** / ☐ **estate** of the minor(s).

Name: _____

Address: _____

Date of Birth: _____

Relationship (if any) to minor(s): _____

- ☐ A corporation or trust company, named below, as guardian **over the estate** of the minor(s), which [unless for nonresident minor(s)] is a corporation organized under the laws of this state and doing business in this state or a banking institution authorized to exercise trust and fiduciary powers within this state.

Name: _____

Address: _____

5. The proposed guardian(s) is/are competent and fit to serve as guardian(s) of the **(check one or both)**: ☐ person and/or ☐ estate of the minor(s); and the welfare and best interests of minor(s) will be properly protected by the appointment of the proposed guardian(s).

6. The estate of each minor consists of: *(If this petition seeks guardianship over the estate of each minor named herein, separately describe and estimate the value of all real property and other assets constituting each child's estate.)*

7. The appointment of a curator (**check one**) ☐ **is** / ☐ **is not** needed to protect the welfare and best interests of the minor(s) until a guardian is appointed by this Court and provides any required bond.

8. In support of this Petition, the petitioner further states: *(Add any other facts or reasons relevant to request for guardian.)*

WHEREFORE, based upon the foregoing, and upon a hearing to be held in this matter, the undersigned petitioner requests that the Court appoint the above-proposed guardian(s) of the herein-named minor(s), and grant such other relief the Court finds appropriate.

Dated this _____ day of _____, 20_____.

VERIFICATION

STATE OF WEST VIRGINIA
COUNTY OF _____, to-wit:

I, _____, on oath or affirmation, say that I am the petitioner named in this PETITION and that the facts contained herein are true, except that where they are stated to be on information and belief, I believe them to be true.

PETITIONER

Taken, subscribed, and sworn or affirmed before me this _____ day of _____, 20_____.

My commission expires: _____.

Notary Public